

		<u>Finally, the court directs the clerk to confirm the case title, register of actions, docket, list of parties, and court index accurately reflect Lucila Barocio is the payee and real party in interest in this case, and to the extent necessary, correct those records to accurately reflect the parties to this action.</u> Petitioner's counsel is ordered to give notice.
5.	<i>In re 8860 La Salle St. 4, Cypress, CA 90630</i> 2026-01554689	OFF CALENDAR based on request for dismissal filed on June 9, 2026.
6.	<i>In Re: 509 Ventaja, Newport Beach, CA 92660</i> 2025-01521014	Before the court are two competing claims to \$74,259.90 in surplus funds (Surplus Funds) from the proceeds of a foreclosure sale of real property located at 509 Ventaja, Newport Beach, California 92660 (Property). The two claims the court received were filed by (1) Radonix, Inc. seeking \$144,999.61, and (2) the California Employment Development Department (EDD) seeking \$18,784.44. The Surplus Funds were deposited with the court on March 17, 2026, by petitioner Prestige Default Services, LLC (Petitioner), and Petitioner was thereafter discharged of any further responsibility for the distribution of the Surplus Funds as provided by Civil Code section 2924j. As such, the only remaining issue in this matter is the resolutions of the competing claims to the Surplus Funds. Civil Code section 2924k establishes the priority pursuant to which the Surplus Funds are to being distributed following the costs and expenses of the foreclosure sale and the satisfaction of the obligation on which the foreclosure sale was based. Specifically, following those two items, the Surplus Funds are to be distributed to any junior lien encumbrances in order of their priority followed by the trustors. (Civ. Code, § 2924k, subd. (a).) "California follows the 'first in time, first in right' system of lien priorities. ([Civ. Code,] § 2897.)" [Citation.] However, that rule is not without exceptions. 'Other things being equal, different liens upon the same property have priority according to the time of their creation' (Civ. Code, § 2897.)" (<i>JP Morgan Chase Bank, N.A. v. Banc of Am. Prac. Sols., Inc.</i> (2012) 209 Cal.App.4th 855, 860.) On April 9, 2026, Radonix and EDD filed a stipulation and proposed order agreeing to the respective priority of their claims, and requesting the court distribute the Surplus Funds in accordance with their stipulation and proposed

		order. Specifically, these two claimants agree EDD's claim has priority over Radonix's claim such that EDD should receive the full amount of its \$18,784.44 claim from the Surplus Funds, and Radonix should receive the balance of the Surplus Funds, or \$55,475.46, which is less than the full amount of Radonix's claim. At the April 16, 2026 hearing to address claims to the Surplus Funds, John Fox appeared and represented he is also a claimant to the surplus funds. Because Mr. Fox had not filed a written claim or presented any evidence to support any claim, the Court continued the hearing and ordered Mr. Fox to file and serve a brief regarding his claim along with declarations of evidence in support of his claim by Friday, May 8, 2026, so EDD and Radonix would have an opportunity to respond. Mr. Fox has not filed any claim nor made any other filing in this case. Similarly, no other party has submitted a written claim other than EDD and Radonix. The court is inclined to order distribution of the Surplus Funds in the manner set forth in the claimants' stipulation and enter the proposed order submitted by EDD and Radonix. All parties, however, should appear for the hearing. The clerk of the court is directed to give notice of this ruling to all parties.
7	Holden vs. Royale Management Group, LLC 2025-01531878	Before the court is the petition of Petitioner David W. Holden (Petitioner) to enforce member rights to books and records under Corporations Code section 17704.10. Petitioner seeks to inspect and copy certain records of respondent Royale Management Group, LLC (RMG). As more fully set forth below, the petition is GRANTED IN PART, DENIED IN PART, and DISMISSED AS TO ONE RESPONDENT. Initially, the court notes Petitioner contends the opposition was not properly served upon him. Petitioner, however, filed a reply that fully addresses the opposition on the merits, and therefore any objection based on the opposition's service has been waived. The court also notes the reply Petitioner filed is 24 pages long, not including the supporting declaration and exhibits. Any reply brief generally is limited to 10 pages. Accordingly, the court has exercised its discretion to review and consider the first 10 pages of the reply and disregard all pages thereafter. Petitioner has named three respondents in these proceedings—RMG and respondents Samuel Lindsey (Lindsey) and Martin Ponce (Ponce). Petitioner, however,